

warn opposing counsel, if counsel's identity is known, of an intent to seek a default and to give counsel a reasonable opportunity to file a responsive pleading." (*Shapell SoCal Rental Properties, LLC v. Chico's FAS, Inc.* (2022) 85 Cal.App.5th 198, 203.) Here, neither the Opposition nor the declaration of Jonathan Fu in support of the Opposition show that this occurred. (Opposition, pp. 1-14; Decl. of Jonathan Fu ISO Opposition, ¶¶ 1-7.)

Third, the minute order dated March 13, 2026, for this case states, "DEFENDANTS HAVE BEEN SERVED ON THE CASE. DEFENDANTS NEED TIME TO ANSWER AND OR ATTEMPT INFORMAL SETTLEMENT." (Opposition, Exh. 3.) Plaintiffs' counsel was present for this case management conference and nonetheless, despite that order, proceeded to file the request for entry of default just 3 business days later, on March 18, 2026.

Ruling

For the reasons discussed above, Defendants' motion to vacate default is **GRANTED**. Defendants shall file their answer or responsive pleading within 10 days of notice of entry of this order.

11. 9:00 AM CASE NUMBER: C25-03386
CASE NAME: CECILY TAYLOR VS. SMITH & COMPANY RESTORATION PRODUCTS, INC.
***HEARING ON MOTION IN RE: SANCTIONS, ATTORNEY'S FEES AND FILING FEES AGAINST PLAINTIFF PURSUANT TO CCP 128.5**
FILED BY: SMITH & COMPANY RESTORATION PRODUCTS, INC.
TENTATIVE RULING:

The Court on its own motion continues this hearing to October 23, 2026, at 9:00 a.m.

12. 9:00 AM CASE NUMBER: C25-03739
CASE NAME: SCOTT MCCOY VS. EXACT HOME BUYERS, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: RODRIGUES, DEREK
TENTATIVE RULING:

This hearing is **continued to November 6, 2026** at 9:00 a.m. in this Department. Code of Civil Procedure section 430.41, subdivision (a) and section 435.5, subdivision (a) state nearly identical language concerning meet and confer obligations on a demurrer and motion to strike. The language is as follows:

Before filing a [demurrer / motion to strike] pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the [demurrer / motion to strike] for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the [demurrer / motion to strike]. *If an amended [complaint, cross-complaint, or answer /pleading] is filed, the responding party shall meet and confer **again** with the party who filed the amended pleading*